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April 16, 2026

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 3297

By: Hays of the House

and

Woods of the Senate

An Act relating to wreckers and towing; creating the Oklahoma Wrecker and Towing Services Revolving Fund; creating the Oklahoma Wrecker Services Division within the Department of Labor; requiring Division to employ certain employees; transferring certain powers, records, and funds to Department of Labor; requiring Department to succeed to certain contractual rights; transferring certain administrative rules to Department; requiring Office of Administrative Rules to provide certain notice; transferring certain rulemaking authorities; transferring certain rules to Department; allowing certain departments and commissions to enter into certain agreements; limiting number of employees to receive transfers; prohibiting the transfer of certain employees without certain consent; requiring certain employees to retain certain time and benefits earned; requiring the Office of Management and Enterprise Services to coordinate certain transfers; amending 47 O.S. 2021, Section 156.1, as last amended by Section 55, Chapter 452, O.S.L. 2024 (47 O.S. Supp. 2025, Section 156.1), which relates to the use of state-owned or -leased motor vehicles for private use; removing allowance of auditor to use certain vehicles; amending 47 O.S. 2021, Section 904, which relates to payment of cost of removal and storage; transferring certain provisions to the Department of Labor; amending 47 O.S. 2021, Section 951, which relates to definitions; modifying definitions; creating the Oklahoma Wrecker and Towing Services Board; establishing membership of Board; establishing

1 term of certain members; requiring certain members to
2 remain in certain business or industry; requiring
3 resignation in certain situations; requiring members
4 to determine certain votes by majority; requiring
5 Board to meet at certain times and locations;
6 requiring Department to provide certain support and
7 venue; construing provisions; requiring Board to
8 promulgate certain rules; requiring Board to act in
9 accordance with the Oklahoma Open Records Act, the
10 Oklahoma Open Meeting Act, and the Administrative
11 Procedures Act; amending 47 O.S. 2021, Sections 952,
12 953, and 953.1, which relate to rulemaking authority,
13 licenses and fees, and maximum fees and charges;
14 limiting authority of Department of Public Safety and
15 Department of Labor; modifying certain rulemaking
16 authority; requiring Department of Labor to enforce
17 certain rules; requiring Department to promulgate
18 certain rules to classify certain services;
19 decreasing fee for certain license; directing certain
20 funds to be deposited into the Oklahoma Wrecker and
21 Towing Services Revolving Fund; removing certain
22 provisions remitting certain fees to the State
23 Treasurer for deposit into General Revenue Fund;
24 subjecting certain operator to certain annual fee;
removing certain established rates; amending 47 O.S.
2021, Section 953.2, as amended by Section 1, Chapter
316, O.S.L. 2023 (47 O.S. Supp. 2025, Section 953.2),
which relates to fees and charges for storage and
after-hours release; removing certain established
rates; modifying certain definitions; removing
certain maximum rate amount; amending 47 O.S. 2021,
Sections 954 and 954A, which relate to enforcement
and abandoned motor vehicle removal; transferring
certain duties to Department; subjecting certain
services to rates established by Board; requiring
certain licensed operator to furnish certain
information in certain situations; transferring
certain responsibilities to Service Oklahoma;
amending 47 O.S. 2021, Section 955, as amended by
Section 12, Chapter 228, O.S.L. 2022 (47 O.S. Supp.
2025, Section 955), which relates to towing of
vehicle from roadway and liability; requiring certain
population to be determined based on the latest
Federal Decennial Census; amending 47 O.S. 2021,
Sections 956, 966, 967, and 968, which relate to
prohibited gifts, the Nonconsensual Towing Act of
2011, assessments, and appointment of unclassified

1 employees; prohibiting certain employees of
2 Department from having certain interests;
3 establishing certain powers in Department and Board;
4 requiring certain rates to remain in effect for
5 certain time period; transferring certain powers to
6 Department; authorizing Department to appoint certain
7 employees; updating statutory language; updating
8 statutory references; providing for codification; and
9 providing an effective date.

10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 1. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 1003 of Title 40, unless there
13 is created a duplication in numbering, reads as follows:

14 There is hereby created in the State Treasury a revolving fund
15 for the Department of Labor to be designated the "Oklahoma Wrecker
16 and Towing Services Revolving Fund". The fund shall be a continuing
17 fund, not subject to fiscal year limitations. All monies accruing
18 to the credit of the fund are hereby appropriated and shall be
19 budgeted and expended by the Department of Labor for the purpose of
20 administering the Oklahoma Wrecker Services Division established
21 pursuant to Section 2 of this act. Expenditures from the fund shall
22 be made upon warrants issued by the State Treasurer against claims
23 filed as prescribed by law with the Director of the Office of
24 Management and Enterprise Services for approval and payment.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-111 of Title 47, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Wrecker Services Division is hereby created within the Department of Labor, which shall consist of such divisions, sections, committees, offices, and positions established by the Department of Labor. The Division shall employ a Division Director and a team of five employees to investigate consumer complaints related to overcharging for nonconsensual towing, recovery, storage fees, and violations of the rules promulgated by the Oklahoma Wrecker and Towing Services Board, established pursuant to Section 6 of this act. Division employees may act as analysts, administrative assistants, administrative technicians, and investigators.

B. 1. The applicable powers, duties, and responsibilities exercised by the Transportation Division of the Corporation Commission relating to wrecker and towing services shall be transferred to the Department of Labor on April 1, 2027. All records, property, equipment, assets, monies, financial interests, liabilities, matters pending, and funds of the Commission related to wrecker and towing services shall be transferred to the Department of Labor.

2. With the exception of initial inspections of wrecker and towing facilities and equipment and rotation log requirements

1 performed by the Department of Public Safety, the applicable powers,
2 duties, and responsibilities for regulating the wrecker and towing
3 industry in this state exercised by the Department of Public Safety
4 shall be transferred to the Department of Labor on November 1, 2026.
5 All records, property, equipment, assets, monies, financial
6 interests, liabilities, matters pending, and funds of the Department
7 of Public Safety related to wrecker and towing services shall be
8 transferred to the Department of Labor.

9 C. The Department of Labor shall succeed to any contractual
10 rights or responsibilities incurred by the Commission pertaining to
11 wrecker and towing services.

12 D. The administrative rules related to wrecker and towing
13 services previously promulgated by the Commission shall be
14 transferred to and become a part of the administrative rules of the
15 Department of Labor upon the effective date of this act. The Office
16 of Administrative Rules within the Office of the Secretary of State
17 shall provide adequate notice in "The Oklahoma Register" of the
18 transferred rules and shall place the transferred rules under the
19 Oklahoma Administrative Code section of the Department of Labor. On
20 the effective date of this act, any amendment, repeal, or addition
21 to the transferred rules shall be under the rulemaking authority of
22 the Department of Labor.

23 E. Aside from rules promulgated by the Department of Public
24 Safety pertaining to rotation logs and initial inspections of

1 wrecker and towing facilities and equipment, the administrative
2 rules previously promulgated by the Department of Public Safety
3 shall be transferred to and become a part of the administrative
4 rules of the Department of Labor upon the effective date of this
5 act. The Office of Administrative Rules within the Office of the
6 Secretary of State shall provide adequate notice in "The Oklahoma
7 Register" of the transferred rules and shall place the transferred
8 rules under the Oklahoma Administrative Code section of the
9 Department of Labor. On the effective date of this act, any
10 amendment, repeal, or addition to the transferred rules shall be
11 under the rulemaking authority of the Department of Labor.

12 F. The Department of Labor, the Corporation Commission, and the
13 Department of Public Safety shall enter into an agreement for the
14 transfer of personnel from the Commission and the Department of
15 Public Safety to the Department of Labor. However, in no instance
16 shall more than six employees receive transfers. No employee shall
17 be transferred to the Department of Labor except upon receipt of
18 written consent of the employee. No employee who is transferred to
19 the Department of Labor shall be required to accept a lesser grade
20 or salary than presently received. All employees shall retain
21 leave, sick, and annual time earned, and any retirement and
22 longevity benefits that have accrued during their tenure with the
23 Corporation Commission or the Department of Public Safety. The
24

1 transfer of any personnel between the state agencies shall be
2 coordinated with the Office of Management and Enterprise Services.

3 G. The Office of Management and Enterprise Services shall
4 coordinate the transfer of records, properties, equipment, assets,
5 funds, allotments, purchase orders, liabilities, outstanding
6 financial obligations, or encumbrances provided for in this section.

7 SECTION 3. AMENDATORY 47 O.S. 2021, Section 156.1, as
8 last amended by Section 55, Chapter 452, O.S.L. 2024 (47 O.S. Supp.
9 2025, Section 156.1), is amended to read as follows:

10 Section 156.1. A. It shall be unlawful for any state official,
11 officer or employee, except any essential employees approved by the
12 Governor and those officers or employees authorized in subsection B
13 of this section, to ride to or from the place of residence of the
14 employee in a state-owned or state-leased automobile, truck or
15 pickup, except in the performance of the official duty of the
16 employee, or to use or permit the use of any such automobile, truck,
17 ambulance or pickup for other personal or private purposes. Any
18 person convicted of violating the provisions of this section shall
19 be guilty of a misdemeanor and shall be punished by a fine of not
20 more than One Hundred Dollars (\$100.00) or by imprisonment in the
21 county jail for a period to not exceed thirty (30) days, or by both
22 said fine and imprisonment, and in addition thereto, shall be
23 discharged from state employment.

1 B. 1. Any state employee, other than the individuals provided
2 for in paragraph 2 of this subsection and any employee of the
3 Department of ~~Public Safety~~ Labor who is a wrecker inspector ~~or~~
4 ~~auditor~~ of the Wrecker Services Division as provided for in
5 paragraph 3 of this subsection, who receives emergency telephone
6 calls regularly at the residence of the employee when the employee
7 is not on duty and is regularly called upon to use a vehicle after
8 normal work hours in response to such emergency calls, may be
9 permitted to use a vehicle belonging to the state to provide
10 transportation between the residence of the employee and the
11 assigned place of employment, provided such distance does not exceed
12 seventy-five (75) miles in any round trip or is within the county
13 where the assigned place of employment is located. Provided
14 further, an employee may be permitted to use a state-owned or state-
15 leased vehicle to provide temporary transportation between a
16 specific work location other than the assigned place of employment
17 and the residence of the employee, if such use shall result in a
18 monetary saving to the agency, and such authorization shall not be
19 subject to the distance or area restrictions provided for in this
20 paragraph. Authorization for temporary use of a state-owned or
21 state-leased vehicle for a specific project shall be in writing
22 stating the justification for this use and the saving expected to
23 result. Such authorization shall be valid for not to exceed sixty
24 (60) days. Any state entity other than law enforcement that avails

1 | itself of this provision shall keep a monthly record of all
2 | participating employees, the number of emergency calls received and
3 | the number of times that a state vehicle was used in the performance
4 | of such emergency calls.

5 | 2. Any employee of the Department of ~~Public Safety~~ Labor,
6 | Oklahoma Department of Corrections, Office of the Attorney General,
7 | Oklahoma State Bureau of Narcotics and Dangerous Drugs Control,
8 | Oklahoma State Bureau of Investigation, Alcoholic Beverage Laws
9 | Enforcement Commission, Oklahoma Horse Racing Commission, Oklahoma
10 | Department of Agriculture, Food, and Forestry, Office of the
11 | Inspector General within the Department of Human Services or Office
12 | of the State Fire Marshal, who is a law enforcement officer or
13 | criminalist, Public Information officer, Special Investigator or
14 | Assistant Director of the Oklahoma State Bureau of Investigation,
15 | the Executive Director of CLEET, CLEET-certified Investigator for a
16 | state board or any employee of a district attorney who is a law
17 | enforcement officer, may be permitted to use a state-owned or state-
18 | leased vehicle to provide transportation between the residence of
19 | the employee and the assigned place of employment and between the
20 | residence and any location other than the assigned place of
21 | employment to which the employee travels in the performance of the
22 | official duty of the employee.

23 | 3. Any employee of the Department of ~~Public Safety~~ Labor who is
24 | a wrecker inspector ~~or auditor~~ of the Wrecker Services Division, or

1 a noncommissioned pilot may be permitted, as determined by the
2 Commissioner of Labor, to use a state-owned or state-leased vehicle
3 to provide transportation between the residence of the employee and
4 the assigned place of employment and between the residence and any
5 location other than the assigned place of employment to which the
6 employee travels in the performance of the official duty of the
7 employee.

8 4. The Director, department heads and other essential employees
9 of the Department of Wildlife Conservation, as authorized by the
10 Wildlife Conservation Commission, may be permitted to use a state-
11 owned or state-leased vehicle to provide transportation between the
12 residence of the employee and the assigned place of employment and
13 between the residence and any location other than the assigned place
14 of employment to which the employee travels in the performance of
15 the official duty of the employee.

16 5. The Director, department heads, emergency responders and
17 other essential employees of the Department of Corrections, as
18 authorized by the Director, may be permitted to use a state-owned or
19 state-leased vehicle to provide transportation between the residence
20 of the employee and the assigned place of employment and between the
21 residence and any location other than the assigned place of
22 employment to which the employee travels in the performance of the
23 official duty of the employee.

1 6. Designated Examiner Auditors, Designated Examiner
2 Supervisors, Commercial Driver License Examiners, Commercial Driver
3 License Auditors, Commercial Driver License Supervisors, and Driver
4 License Supervisors, as an employee of Service Oklahoma may be
5 permitted, as determined by the Director of Service Oklahoma, to use
6 a state-owned or state-leased vehicle to provide transportation
7 between the residence of the employee and the assigned place of
8 employment and between the residence and any location other than the
9 assigned place.

10 7. The Attorney General, division heads, emergency responders,
11 agents, assistant attorneys general, and other essential employees
12 of the Office of the Attorney General, as authorized by the Attorney
13 General, may be permitted to use a state-owned or state-leased
14 vehicle to provide transportation between the residence of the
15 employee and the assigned place of employment and between the
16 residence and any location other than the assigned place of
17 employment to which the employee travels in the performance of the
18 official duty of the employee.

19 C. The principal administrator of the state agency with which
20 the employee is employed shall so designate the status of the
21 employee in writing or provide a copy of the temporary authorization
22 to the Governor, the President Pro Tempore of the Senate and the
23 Speaker of the House of Representatives. Such employee status
24 report shall also be provided to the State Fleet Manager of the

1 Division of Fleet Management if the motor vehicle for emergency use
2 is provided by said Division.

3 SECTION 4. AMENDATORY 47 O.S. 2021, Section 904, is
4 amended to read as follows:

5 Section 904. The owner of a motor vehicle or lienholder of the
6 vehicle abandoned in violation of Section 901 et seq. of this title,
7 or the owner of any vehicle or lienholder of the vehicle or insurer
8 accepting liability for paying a claim on a vehicle or purchasing
9 the vehicle as a total loss vehicle from the registered owner which
10 shall have been lawfully removed from any highway or other public
11 property may regain possession of the vehicle in accordance with
12 regulations of the Department of ~~Public Safety~~ Labor upon payment of
13 the reasonable cost of removal and storage of such vehicle. The
14 operator is authorized to collect all lawful fees from the owner,
15 lienholder that seeks possession of a vehicle under a security
16 interest, agent, or insurer accepting liability for paying the claim
17 for a vehicle or purchasing the vehicle as a total loss vehicle from
18 the registered owner of the towed vehicle for the performance of any
19 and all such services. An operator shall release the vehicle from
20 storage upon authorization from the owner, agent or lienholder of
21 the vehicle or in the case of a total loss, the insurer accepting
22 liability for paying the claim on the vehicle or purchasing the
23 vehicle where the vehicle is to be moved to an insurance pool yard
24 for sale. In the case of death or incapacitation of the owner of a

1 motor vehicle, the operator may release the vehicle to a legal
2 representative or an immediate family member who is within the first
3 or second degree of consanguinity or affinity. The legal
4 representative or family member shall provide a notarized affidavit
5 describing his or her relationship to the owner of the motor vehicle
6 and proof of identity in accordance with the Department's rules
7 related to establishing identity.

8 The cost of removal and storage shall be paid to the wrecker or
9 towing service.

10 SECTION 5. AMENDATORY 47 O.S. 2021, Section 951, is
11 amended to read as follows:

12 Section 951. As used in Sections 951 through ~~965~~ 968 of this
13 title and Sections 1 ~~through 3~~ and 2 of this act:

14 1. "Wrecker or wrecker vehicle" means any motor vehicle that is
15 equipped with any device designed to tow another vehicle or
16 combination of vehicles. The use of the term "wrecker" or "wrecker
17 vehicle" shall be construed to include a combination wrecker or
18 combination wrecker vehicle, as defined in paragraph 2 of this
19 section, unless a specific differentiation is otherwise described;

20 2. "Combination wrecker" or "combination wrecker vehicle" means
21 any wrecker vehicle which is designed and equipped with two separate
22 and distinct devices to tow simultaneously two or more other
23 vehicles or combinations of vehicles, whether or not both devices
24 are in use simultaneously. One of the devices shall allow another

1 vehicle to be loaded onto and transported upon the wrecker vehicle,
2 and one of the devices shall allow another vehicle to be attached to
3 and pulled by the wrecker vehicle;

4 3. "Tow" or "towing" means the use of a wrecker vehicle to
5 lift, pull, move, haul or otherwise transport any other vehicle by
6 means of:

7 a. attaching the vehicle to and pulling the vehicle with
8 the wrecker vehicle, or

9 b. loading the vehicle onto and transporting the vehicle
10 upon the wrecker vehicle;

11 4. "Rollback equipment" means a towing device or equipment upon
12 which the towed vehicle is loaded and transported, removing the
13 towed vehicle completely from the surface of the roadway. The term
14 "rollback equipment" shall include car haulers;

15 5. "Dolly" means a towing device or equipment which lifts and
16 suspends one axle of the towed vehicle above the surface of the
17 roadway;

18 6. "Wrecker or towing service" means engaging in the business
19 of or performing the act of towing or offering to tow any vehicle,
20 except:

21 a. where the operator owns the towed vehicle and displays
22 on both sides of the wrecker vehicle in plainly
23 visible letters not less than two (2) inches in height
24 the words "NOT FOR HIRE",

- b. where the service is performed by a transporter as defined in Section 1-181 of this title,
- c. where service is performed in conjunction with the transportation of household goods and property,
- d. where the wrecker vehicle is owned or operated by the United States government, the State of Oklahoma, or any department or political subdivision thereof, or
- e. where the service is performed by an out-of-state wrecker service at the request of the vehicle owner or operator, the vehicle is not involved in a collision, and is being towed:
- (1) in either direction across the border between Oklahoma and a neighboring state, or
 - (2) through Oklahoma in transit to another state;
- provided, the out-of-state wrecker service shall comply with all other requirements regarding interstate commerce as set forth in law;

7. "Commissioner" means the Commissioner of ~~Public Safety~~ Labor;

8. "Commission" means the Corporation Commission;

9. "Department" means the Department of ~~Public Safety~~ Labor;

10. "Nonconsensual tow" means the transportation of a vehicle without the consent or knowledge of the vehicle's owner, possessor, agent, insurer, lienholder, or any other person in possession of or

1 in charge of any vehicle and includes the transportation or towing
2 of the vehicle under lawful circumstances or necessity for the
3 public interest including removing from the roadway for public
4 safety or public convenience, or accidents, by any law enforcement
5 officer or property agent or removal from public or private property
6 as a result of abandonment or unauthorized parking by the property
7 owner, agent, possessor, or other legal entity for the property
8 owner;

9 11. "Operator" means any person owning or operating a wrecker
10 vehicle or wrecker or towing service;

11 12. "Officer" means any duly authorized law enforcement
12 officer;

13 13. "Reasonable tow rates" means rates that are directly
14 related to the actual cost of providing the nonconsensual tow,
15 include a modest and customary margin, and do not exceed the maximum
16 rates as approved by the Oklahoma Wrecker and Towing Services Board
17 established pursuant to Section 6 of this act;

18 14. "Roadway" means any public street, road, highway or
19 turnpike or the median, easement or shoulder of a roadway;

20 ~~14.~~ 15. "Service call" means the act of responding to a request
21 for service with a wrecker vehicle in which a service is performed;
22 and

23 ~~15.~~ 16. "Vehicle" shall:
24

- 1 a. have the same meaning as defined in Section 1-186 of
2 this title, and
- 3 b. for the purposes of this chapter when referring to a
4 vehicle or combination of vehicles being towed or
5 stored, include a vessel. The term "vessel" shall
6 have the same meaning as defined in Section 4002 of
7 Title 63 of the Oklahoma Statutes.

8 SECTION 6. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 951.1 of Title 47, unless there
10 is created a duplication in numbering, reads as follows:

11 A. There is hereby created, pursuant to the Oklahoma Sunset
12 Law, until January 1, 2032, the Oklahoma Wrecker and Towing Services
13 Board, which shall be the regulatory authority for the Oklahoma
14 Wrecker Services Division established pursuant to Section 2 of this
15 act. The Board shall consist of nine (9) members who shall
16 initially serve staggered terms of membership on the Board. The
17 initial staggered terms of membership on the Board shall be as
18 follows:

19 1. One member holding a license or who is licensed by the
20 Department of Labor to engage in nonconsensual towing who operates
21 in a county with a population of one hundred thousand (100,000) or
22 more according to the latest Federal Decennial Census, shall be
23 appointed by the President Pro Tempore of the Senate and such
24 membership shall expire June 30, 2030;

1 2. One member holding a license or who is licensed by the
2 Department of Labor to engage in nonconsensual towing who operates
3 in a county with a population of less than one hundred thousand
4 (100,000) according to the latest Federal Decennial Census, shall be
5 appointed by the Speaker of the House of Representatives and such
6 membership shall expire June 30, 2028;

7 3. One member from the Oklahoma Trucking Association shall be
8 appointed by the Speaker of the House of Representatives and such
9 membership shall expire June 30, 2029;

10 4. One member from law enforcement shall be appointed by the
11 Governor and such membership shall expire June 30, 2030;

12 5. One member holding a license or who is licensed by the
13 Department of Labor to engage in nonconsensual towing shall be
14 appointed by the Governor and such membership shall expire June 30,
15 2028;

16 6. One member from the commercial insurance industry shall be
17 appointed by the President Pro Tempore of the Senate and such
18 membership shall expire June 30, 2029;

19 7. One member from the Department of Transportation shall be
20 appointed by the Governor and such membership shall expire June 30,
21 2030;

22 8. One member, who is in an industry unrelated to any other
23 member of the Board, shall be appointed by the Governor from the
24 state at large and such membership shall expire June 30, 2028; and

1 9. One member, who is in an industry unrelated to any other
2 member of the Board, shall be appointed by the Governor from the
3 state at large and such membership shall expire June 30, 2029.

4 Thereafter, persons appointed pursuant to paragraphs 1 through 9
5 of this subsection shall be appointed for terms of three (3) years
6 beginning July 1. Any vacancy shall be filled by the appointing
7 authority for the remainder of the unexpired term.

8 B. Members appointed pursuant to paragraphs 3 through 9 of
9 subsection A of this section shall remain engaged in the business or
10 industry described in subsection A of this section. A member so
11 appointed who no longer satisfies the requirements for his or her
12 Board position pursuant to subsection A of this section shall
13 provide notification of his or her change of status to his or her
14 appointing authority and to the chair of the Board, and shall resign
15 from the Board within thirty (30) days of the date upon which the
16 member no longer satisfies the requirements of the appointment.

17 C. The members shall determine who shall serve as chair by
18 majority vote of the quorum of the Board. The chair shall be
19 elected annually, with the right to succeed himself or herself, from
20 the membership of the Board.

21 D. The Board shall meet at such times that the chair deems
22 necessary, but no meeting shall be held outside of this state. All
23 actions of the Board shall be by a quorum. Five members of the
24 Board shall constitute a quorum for the purpose of transacting

1 business. The Department of Labor shall provide administrative
2 support and a meeting venue for the Board.

3 E. Nothing in this act shall be construed to authorize the
4 Board to regulate consensual towing services, voluntary roadside
5 assistance, or privately negotiated towing contracts. The Board
6 shall promulgate rules under the authority of the Department of
7 Labor to carry out its intent and shall regulate the nonconsensual
8 wrecker and towing industry in this state, including:

9 1. Establishing maximum tow rates for nonconsensual tows. Such
10 rates may be adjusted every three (3) years by the Board;

11 2. Establishing reasonable licensing, insurance, and equipment
12 requirements for any person engaging in nonconsensual towing and
13 related services;

14 3. Establishing reasonable tow truck safety requirements for
15 any wrecker or wrecker vehicle as defined in Section 951 of Title 47
16 of the Oklahoma Statutes;

17 4. Establishing a procedure to accept and investigate
18 complaints from a consumer who claims that he or she has been
19 overcharged for fees related to nonconsensual towing, recovery, or
20 storage;

21 5. Determining and sanctioning excessive or unnecessary fees
22 charged to consumers related to nonconsensual towing, recovery, or
23 storage;

1 6. Requiring all entities permitted, licensed, or regulated by
2 the Board to provide all documents in response to information
3 requests by the Board pursuant to the investigation of consumer
4 complaints or Board complaints against the permittee or licensee;

5 7. Requiring all entities permitted, licensed, or regulated by
6 the Board to provide itemized billing for fees related to
7 nonconsensual towing, storage, or vehicle immobilization services
8 that explains how the charges were calculated;

9 8. Requiring all entities permitted, licensed, or regulated by
10 the Board to maintain a copy of the current maximum rate schedule or
11 fee schedule established by the Board posted in a conspicuous place
12 and readily accessible to the public;

13 9. Requiring all entities permitted, licensed, or regulated by
14 the Board to allow the owner or agent of the owner of a motor
15 vehicle removed pursuant to Section 951 et seq. of Title 47 of the
16 Oklahoma Statutes to use any other entity permitted, licensed, or
17 regulated by the Board when reclaiming the motor vehicle from
18 storage;

19 10. Requiring all entities permitted, licensed, or regulated by
20 the Board to post a sign notifying customers of the procedure to
21 obtain a vehicle from storage and the consumer complaint process
22 pursuant to Section 953.1 of Title 47 of the Oklahoma Statutes.
23 Such sign shall be in a conspicuous and central location in the
24 public area of the business and shall be a minimum of sixteen (16)

1 inches by twenty (20) inches in size. The Board may assess a fine
2 not less than Fifty Dollars (\$50.00) and not more than Two Hundred
3 Fifty Dollars (\$250.00) for failure to comply with the provisions of
4 this paragraph;

5 11. Utilizing Oklahoma Wrecker Services Division, established
6 pursuant to Section 2 of this act, investigators to investigate
7 consumer complaints related to overcharging for nonconsensual
8 towing, recovery, storage fees, and violations of the rules
9 promulgated by the Board;

10 12. Promulgating rules and the authority of the Department of
11 Labor that shall set standards and procedures for any additional
12 inspections required by the Board; and

13 13. Submitting promulgated rules to the Department for
14 approval.

15 F. Members of the Board shall serve without compensation, and
16 shall be reimbursed through the Department for expenses incurred in
17 the performance of their duties in accordance with the provisions of
18 the State Travel Reimbursement Act.

19 G. Each member shall serve at the pleasure of his or her
20 appointing authority and may be removed or replaced without cause.

21 H. The Board shall act in accordance with the provisions of the
22 Oklahoma Open Records Act, the Oklahoma Open Meeting Act, and the
23 Administrative Procedures Act.

24

1 SECTION 7. AMENDATORY 47 O.S. 2021, Section 952, is
2 amended to read as follows:

3 Section 952. A. Except for the ~~rates established by the~~
4 ~~Corporation Commission and other provisions as provided for by law,~~
5 inspections conducted for the initial licensure of a wrecker or
6 towing operator and rotation logs that shall be performed by the
7 Department of Public Safety, the Department of Labor shall have the
8 power and authority necessary to license, supervise, govern and
9 control wrecker vehicles and wrecker or towing services.

10 B. 1. The Department of ~~Public Safety~~ Labor, through the
11 Oklahoma Wrecker and Towing Services Board established pursuant to
12 Section 6 of this act, shall adopt and prescribe such rules as are
13 necessary to carry out the intent of Section 951 et seq. of this
14 title.

15 2. All rules promulgated by the Department of Public Safety,
16 not including any rules concerning rotation logs and initial
17 inspections currently in place, carrying out the provisions of
18 Section 951 et seq. of this title shall be enforced by the
19 Department of Labor until such time as the Department of Labor
20 promulgates new rules.

21 3. The rules shall state the requirements for facilities, for
22 storage of vehicles, necessary towing equipment, the records to be
23 kept by operators, liability insurance and insurance covering the
24 vehicle and its contents while in storage in such sum and with such

1 provisions as the ~~Department~~ Board deems necessary to adequately
2 protect the interests of the public, and such other matters as the
3 ~~Department~~ Board may prescribe for the protection of the public.

4 C. Unless otherwise regulated by the governing body of the
5 political subdivision, the wrecker vehicle used to perform wrecker
6 or towing services requested by a political subdivision of this
7 state for removal of a vehicle from public property for reasons
8 listed in Section 955 of this title shall be from the licensed
9 wrecker or towing service whose location is nearest to the vehicle
10 to be towed. Requests for service may be alternated or rotated
11 among all such licensed wrecker or towing services which are located
12 within a reasonable radius of each other. In cities of less than
13 fifty thousand (50,000) population, all such licensed wrecker or
14 towing services located near or in the city limits of such cities
15 shall be considered as being equal distance and shall be called on
16 an equal basis as nearly as possible. The police chief of any
17 municipality and the county sheriff of each county shall keep
18 rotation logs on all requested tows, except where there are
19 insufficient licensed wrecker or towing services available to rotate
20 such services or services are contracted after a competitive bid
21 process. Rotation logs shall be made available for public
22 inspection upon request. Any calls made from cell phones or two-way
23 radios by any law enforcement officer or employee of any
24 municipality or county to any wrecker service shall be listed on the

1 rotation or call logs and made available for public inspection. A
2 wrecker service shall not be removed from rotation without
3 notification to the wrecker operator stating the reason for removal
4 from the rotation log. All notification for removal from a rotation
5 log shall be mailed to the wrecker service owner at least ten (10)
6 days before removal from the rotation log and shall state the
7 procedure and requirements for reinstatement.

8 D. 1. Except as otherwise provided in this subsection, the
9 Department of Public Safety and any municipality, county or other
10 political subdivision of this state shall not place any wrecker or
11 towing service upon an official rotation log for the performance of
12 services carried out pursuant to the request of or at the direction
13 of any officer of the Department of Public Safety or municipality,
14 county or political subdivision unless the service meets the
15 following requirements:

16 ~~1. Principal~~

17 a. principal business facilities are located within
18 Oklahoma~~+~~,

19 ~~2. Tow~~

20 b. tow trucks are registered and licensed in Oklahoma~~+~~,
21 and

22 ~~3. Owner~~

23 c. owner is a resident of ~~the State of Oklahoma~~ this
24 state or the service is an Oklahoma corporation.

1 2. In the event a licensed wrecker or towing service is not
2 located within a county, a wrecker or towing service that is located
3 outside of the county or this state and does not meet the above
4 qualifications may be placed on the rotation log for the county or
5 any municipality or political subdivision located within the county.

6 3. When performing services at the request of any officer, no
7 operator or wrecker or towing service upon the rotation logs shall
8 charge fees in excess of the maximum rates for services performed
9 ~~within~~ in this state, including incorporated and unincorporated
10 areas, as established by the ~~Commission~~ Board.

11 E. The Department of Public Safety shall place a licensed Class
12 AA wrecker service on the Highway Patrol Rotation Log in a highway
13 patrol troop district in which the place of business and the primary
14 storage facility of the wrecker service are located upon written
15 request filed by the wrecker service with the Department of Public
16 Safety. Upon further request of the wrecker service, the
17 Commissioner of Public Safety or the Department of Public Safety
18 employee with statewide responsibility for administration of wrecker
19 services may place a wrecker service on the Highway Patrol Rotation
20 Log in a district adjacent to the district in which the place of
21 business and the primary storage facility of the wrecker service are
22 located if the wrecker service is in proximity to and within a
23 reasonable radius of the boundary of the district. When a wrecker
24 service is placed on the rotation log in a district, the Department

1 of Public Safety shall notify the wrecker service and the troop
2 commander of the district.

3 F. The Commissioner of Public Safety or the Department of
4 Public Safety employee with statewide responsibility for
5 administration of wrecker services shall be responsible for
6 establishing geographical areas of rotation within the troop
7 districts and for notifying each wrecker service of the geographical
8 areas of rotation to which the service is assigned.

9 G. The Department of Public Safety shall make all rotation logs
10 available for public inspection at the state office and shall make
11 rotation logs for a highway patrol troop district available for
12 public inspection at the district office.

13 H. The Department of Labor, through the Oklahoma Wrecker and
14 Towing Services Board, shall promulgate rules that classify wrecker
15 and towing services by the type of services and equipment they are
16 capable of providing for nonconsensual tows and accident
17 remediation.

18 SECTION 8. AMENDATORY 47 O.S. 2021, Section 953, is
19 amended to read as follows:

20 Section 953. A. No operator shall be permitted nor shall any
21 employee of any operator be permitted, allowed or caused to solicit
22 business or make service calls without the operator first having
23 obtained from the Department of ~~Public Safety~~ Labor a license to
24 operate a wrecker or towing service. The number of the license

1 shall be displayed, in conformance with rules of the Department, on
2 both sides of every wrecker vehicle operated by the wrecker or
3 towing service.

4 B. The license fee required by this section shall be in lieu of
5 the motor carrier filing fee as required in Section 165 of this
6 title. No applicant for a wrecker license shall be required to
7 prove public convenience and necessity, file notices, nor shall a
8 public hearing be held. The fee for such license shall be Five
9 Hundred Dollars (\$500.00), of which ~~Ninety Dollars (\$90.00)~~ Two
10 Hundred Fifty Dollars (\$250.00) shall be deposited in the ~~General~~
11 ~~Revenue Fund~~ Oklahoma Wrecker and Towing Services Revolving Fund
12 established pursuant to Section 1 of this act and ~~Four Hundred Ten~~
13 ~~Dollars (\$410.00)~~ Two Hundred Fifty Dollars (\$250.00) shall be
14 deposited in the Department of Public Safety Restricted Revolving
15 Fund created pursuant to Section 2-145 of this title for the
16 administration of the Department's Wrecker Services Division ~~and~~
17 ~~modernization of computer programs~~. No license fee shall be
18 refunded in the event the license is suspended or revoked.

19 C. All licenses shall expire on the last day of the calendar
20 year and may be renewed annually at a cost of Two Hundred Fifty
21 Dollars (\$250.00) upon application to the Department of Labor as
22 prescribed by rule. ~~Two Hundred Dollars (\$200.00) of the~~ The fees
23 collected ~~in~~ pursuant to the provisions of this subsection shall be
24 deposited in the ~~Department of Public Safety Restricted Revolving~~

1 ~~Fund created in Section 2-145 of this title for the modernization of~~
2 ~~computer programs and the administration of the Department's Wrecker~~
3 ~~Services Division and Fifty Dollars (\$50.00) shall be deposited in~~
4 ~~the General Revenue Fund~~ Oklahoma Wrecker and Towing Services
5 Revolving Fund established pursuant to Section 1 of this act. No
6 license fee shall be refunded in the event the license is suspended
7 or revoked.

8 D. The Department shall issue a letter of reprimand, cancel,
9 suspend, revoke, or refuse to issue or renew the license of an
10 operator when it finds the licensee or applicant has not complied
11 with or has violated any of the provisions of the Nonconsensual
12 Towing Act of 2011, or any rules adopted by the Department. A
13 suspension or revocation shall be for a period of time deemed
14 appropriate by the Department for the violation. Any canceled,
15 suspended, or revoked license shall be returned to the Department by
16 the operator, and the operator shall not be eligible to apply for
17 another license until the period of suspension or revocation has
18 elapsed.

19 E. The provisions of the Administrative Procedures Act are
20 expressly made applicable to the Nonconsensual Towing Act of 2011.

21 F. In any civil action to enforce the equal application of the
22 alternation or rotation of wrecker or towing services regulated by a
23 political subdivision of the state, the prevailing party shall be
24

1 allowed attorney fees determined by the court, to be taxed and
2 collected as costs.

3 ~~G. Fees collected pursuant to the provisions of this section~~
4 ~~shall be remitted to the State Treasurer to be credited to the~~
5 ~~General Revenue Fund in the State Treasury except as provided by~~
6 ~~subsection H of this section.~~

7 ~~H. Fees allocated to the Department by this section shall be~~
8 ~~deposited in the Department of Public Safety Restricted Revolving~~
9 ~~Fund~~ In addition to the annual renewal fee established in subsection
10 C of this section, a wrecker or towing operator shall be subject to
11 an additional annual fee of One Hundred Twenty-five Dollars
12 (\$125.00) per truck in such operator's fleet. All such fees shall
13 be deposited in the Oklahoma Wrecker and Towing Services Revolving
14 Fund established pursuant to Section 1 of this act.

15 SECTION 9. AMENDATORY 47 O.S. 2021, Section 953.1, is
16 amended to read as follows:

17 Section 953.1. A. The rates established by the ~~Corporation~~
18 ~~Commission~~ Oklahoma Wrecker and Towing Services Board established
19 pursuant to Section 6 of this act shall determine the nonconsensual
20 tow maximum fees and charges for wrecker or towing services
21 performed in this state, including incorporated and unincorporated
22 areas, by a wrecker or towing service licensed by the Department of
23 ~~Public Safety~~ Labor when that service appears on the rotation log of
24 the Department of Public Safety or on the rotation log of any

1 municipality, county or other political subdivision of this state,
2 and the services performed are at the request or at the direction of
3 any officer of the Department of Public Safety or of a municipality,
4 county, or political subdivision. No wrecker or towing service in
5 the performance of transporting or storing vehicles or other
6 property towed as a result of a nonconsensual tow shall charge any
7 fee which exceeds the maximum rates established by the ~~Commission~~
8 Oklahoma Wrecker and Towing Services Board. Such rates shall be in
9 addition to any other rates, fees or charges authorized, allowed or
10 required by law and costs to collect such fees. Any wrecker or
11 towing service is authorized to collect from the owner, lienholder,
12 agent or insurer accepting liability for paying the claim for a
13 vehicle or purchasing the vehicle as a total loss vehicle from the
14 registered owner of any towed or stored vehicle, the fee required by
15 Section 904 of this title including environmental remediation fees
16 and services.

17 B. When wrecker or towing services are performed as provided in
18 subsection A of this section:

19 1. Each performance of a wrecker or towing service shall be
20 recorded by the operator on a bill or invoice as prescribed by rules
21 of the Department ~~and by order of the Commission~~ of Labor;

22 2. Nothing herein shall limit the right of an operator who has
23 provided or caused to be provided wrecker or towing services to
24

1 require prepayment, in part or in full, or guarantee of payment of
2 any charges incurred for providing such services;

3 3. This section shall not be construed to require an operator
4 to charge a fee for the performance of any wrecker or towing
5 services; and

6 4. The operator is authorized to collect all lawful fees from
7 the owner, lienholder or agent or insurer accepting liability for
8 paying the claim for a vehicle or purchasing the vehicle as a total
9 loss vehicle from the registered owner of the towed vehicle for the
10 performance of any and all such services and costs to collect such
11 fees. An operator shall release the vehicle from storage upon
12 authorization from the owner, agent or lienholder of the vehicle or,
13 in the case of a total loss, the insurer accepting liability for
14 paying the claim for the vehicle or purchasing the vehicle where the
15 vehicle is to be moved to an insurance pool yard for sale.

16 ~~C. The rates in subsections D through G of this section shall~~
17 ~~be applicable until superseded by rates established by the~~
18 ~~Commission.~~

19 ~~D. Distance rates.~~

20 ~~1. Rates in this subsection shall apply to the distance the~~
21 ~~towed vehicle is transported and shall include services of the~~
22 ~~operator of the wrecker vehicle. Hourly rates, as provided in~~
23 ~~subsection E of this section, may be applied in lieu of distance~~
24 ~~rates. Hourly rates may be applied from the time the wrecker~~

1 ~~vehicle is assigned to the service call until the time it is~~
2 ~~released from service either upon return to the premises of the~~
3 ~~wrecker or towing service or upon being assigned to perform another~~
4 ~~wrecker or towing service, whichever occurs first. When the hourly~~
5 ~~rate is applied in lieu of distance towing rates, the operator may~~
6 ~~not apply the two-hour minimum prescribed in subsection E of this~~
7 ~~section nor may hookup or mileage charges, as prescribed in this~~
8 ~~section, be applied.~~

9 ~~Such distance rates shall be computed via the shortest highway~~
10 ~~mileage as determined from the latest official Oklahoma Department~~
11 ~~of Transportation state highway map, except as follows:~~

12 ~~a. for distances or portions of distances not~~
13 ~~specifically provided for in the governing highway~~
14 ~~map, the actual mileage via the shortest practical~~
15 ~~route will apply,~~

16 ~~b. in computing distances, fractions of a mile will be~~
17 ~~retained until the final and full mileage is~~
18 ~~determined, at which time any remaining fraction shall~~
19 ~~be increased to the next whole mile,~~

20 ~~c. when, due to circumstances beyond the control of the~~
21 ~~wrecker or towing service, roadway conditions make it~~
22 ~~impractical to travel via the shortest route, distance~~
23 ~~rates shall be computed based on the shortest~~
24 ~~practical route over which the wrecker vehicle and the~~

~~vehicle it is towing can be moved, which route shall be noted on the bill or invoice, or~~
~~d. when the wrecker or towing service is performed upon any turnpike or toll road, the turnpike or toll road mileage shall be used to determine the distance rates charged and the turnpike or toll road fees may be added to the bill or invoice.~~

~~2. Maximum distance rates shall be as follows:~~

Weight of Towed Vehicle	Distance	Rate
(In pounds, including	Towed	Per
equipment and lading)		Mile
Single vehicle: 8,000 or less	25 miles or less	\$3.00
Single vehicle: 8,000 or less	Over 25 miles	\$2.50
Single vehicle: 8,001 to 12,000	25 miles or less	\$3.40
Single vehicle: 8,001 to 12,000	Over 25 miles	\$3.00
Single vehicle: 12,001 to 40,000	Any	\$5.75
Single vehicle: 40,000 or over	Any	\$6.75
Combination of vehicles	Any	\$6.75

~~E. Hourly Rates.~~

~~1. Rates in this subsection shall apply for the use of a wrecker vehicle and shall include services of the operator of such wrecker, except as provided in paragraph 4 of this subsection.~~
~~Rates shall apply for all wrecker or towing services performed that are not otherwise provided for in this section, including, but not~~

1 ~~limited to, waiting and standby time, but shall not include the~~
2 ~~first fifteen (15) minutes of service following the hookup of a~~
3 ~~vehicle when a hookup fee is assessed, as provided in subsection F~~
4 ~~of this section.~~

5 ~~Hourly rates shall apply from the time the vehicle or labor is~~
6 ~~assigned to the service call until the time it is released from~~
7 ~~service either upon return to the premises of the wrecker or towing~~
8 ~~service or upon being assigned to perform another wrecker or towing~~
9 ~~service, whichever occurs first. Whenever a wrecker vehicle is used~~
10 ~~to tow a vehicle subject to distance rates, as provided in~~
11 ~~subsection D of this section, hourly rates shall apply only for the~~
12 ~~time such wrecker is used in the performance of services other than~~
13 ~~transportation, except when such hourly rates are used in lieu of~~
14 ~~such distance rates.~~

15 ~~As used in this subsection, rates stated per hour apply for~~
16 ~~whole hours and, for fractions of an hour, rates stated per fifteen~~
17 ~~(15) minutes apply for each fifteen (15) minutes or fraction thereof~~
18 ~~over seven and one-half (7 1/2) minutes. However, if the service~~
19 ~~subject to an hourly rate is performed in less than two (2) hours,~~
20 ~~the charge applicable for two (2) hours may be assessed, except as~~
21 ~~provided for in subsection D of this section.~~

22 ~~2. Maximum hourly rates for wrecker or towing services~~
23 ~~performed for passenger vehicles, when rates for such services are~~
24 ~~not otherwise provided for by law, shall be as follows:~~

1	Weight of Towed Passenger Vehicle	Rate Per	Rate Per
2	(In pounds)	Hour	15 Minutes
3	Single vehicle: 8,000 or less	\$60.00	\$15.00
4	Single vehicle: 8,001 to 24,000	\$80.00	\$20.00
5	Single vehicle: 24,001 to 44,000	\$120.00	\$30.00
6	Single vehicle: 44,001 or over	\$180.00	\$45.00
7	Combination of vehicles	\$180.00	\$45.00

8 3. ~~Maximum hourly rates for all other wrecker or towing~~
9 ~~services, when rates for such other services are not otherwise~~
10 ~~provided for by law, shall be determined based upon the gross~~
11 ~~vehicle weight rating of each wrecker vehicle used as follows:~~

12	GVWR of Wrecker Vehicle	Rate Per	Rate Per
13	(In pounds)	Hour	15 Minutes
14	8,000 or less	\$60.00	\$15.00
15	8,001 to 24,000	\$80.00	\$20.00
16	24,001 to 44,000	\$120.00	\$30.00
17	44,001 or over	\$180.00	\$45.00
18	Combination wrecker vehicle		
19	with GVWR of 24,000 or over	\$180.00	\$45.00

20 4. a. ~~Maximum hourly rates for extra labor shall be Thirty~~
21 ~~Dollars (\$30.00) per person per hour.~~
22 b. ~~Maximum hourly rates for skilled or specialized labor~~
23 ~~and/or equipment shall be the actual customary and~~
24 ~~ordinary rates charged for such labor and/or~~

~~equipment. When skilled or specialized labor or equipment is required, the wrecker operator's cost for such skilled or specialized labor or equipment plus a twenty-five percent (25%) gross profit markup to cover overhead costs for such labor will be added to the invoice or freight bill to be collected in addition to all other applicable charges.~~

~~F. Hookup Rates.~~

~~1. Rates in this subsection shall apply to the hookup of a vehicle to a wrecker vehicle when such hookup is performed in connection with a wrecker or towing service described in this section. Such hookup rate shall include the first fifteen (15) minutes of such service, for which there shall be no additional fee charged, but shall not include the use of a dolly or rollback equipment or a combination wrecker vehicle to accomplish such hookup, for which an additional fee may be charged as provided in subsection C of this section. Hookup shall include, but not be limited to, the attachment of a vehicle to or the loading of a vehicle onto a wrecker vehicle.~~

~~2. Maximum hookup rates shall be as follows:~~

~~Weight of Vehicle Being Hooked Up~~

~~(In pounds, including equipment _____ Rate
and lading)~~

~~Single vehicle: 8,000 or less _____ \$65.00~~

1 ~~Single vehicle: 8,001 to 12,000~~ ~~\$75.00~~
2 ~~Single vehicle: 12,001 to 24,000~~ ~~\$85.00~~
3 ~~Single vehicle: 24,001 or over~~ ~~\$95.00~~
4 ~~Combination of vehicles~~ ~~\$95.00~~

5 ~~G. Additional Service Rates.~~

6 ~~1. Rates in this subsection shall apply to the performance of~~
7 ~~the following services:~~

8 ~~a. the disconnection and reconnection of a towed~~
9 ~~vehicle's drive line when necessary to prevent~~
10 ~~mechanical damage to such vehicle,~~

11 ~~b. the removal and replacement of a towed vehicle's axle~~
12 ~~when necessary to prevent mechanical damage to such~~
13 ~~vehicle, or~~

14 ~~c. the use of a dolly or rollback equipment when~~
15 ~~essential to prevent mechanical damage to a towed~~
16 ~~vehicle or when neither end of such vehicle is capable~~
17 ~~of being towed safely while in contact with the~~
18 ~~roadway.~~

19 ~~2. Maximum additional service rates shall be as follows:~~

20	Weight of Towed	Service Performed
21	Vehicle (In pounds,	Disconnect Reconnect Use of Dolly
22	including equipment	Drive Line; Drive Line; or Rollback
23	and lading)	Remove Axle Replace Axle Equipment
24		Rate Per Service Performed

1	8,000 or less	\$10.00	\$15.00	\$25.00
2	8,001 to 12,000	\$15.00	\$20.00	\$30.00
3	Rate Per 15 Minutes of Service Performed			
4	12,001 or over	\$20.00	\$20.00	Not applicable

5 ~~H.~~ An operator shall be required to provide reasonable
6 documentation to the Department of Labor to substantiate all lawful
7 fees charged the owner, lienholder, agent or insurer paying the
8 claim for the towed vehicle. Fees for which the operator is being
9 reimbursed or having paid to a third party, shall include copies of
10 the invoice or other appropriate documents to substantiate such
11 payment to said third party.

12 ~~F.~~ D. Wrecker fees, including maximum distance, hourly, and
13 hookup rates shall be adjusted weekly by adding a fuel surcharge as
14 provided in this section. The fuel surcharge shall be based on the
15 Department of Energy "weekly retail on-highway diesel prices" for
16 the "Midwest region" using Two Dollars (\$2.00) per gallon as the
17 base price with no fees added. The wrecker fees shall be adjusted
18 to allow a one-percent increase in fees for every ten-cent increase
19 in fuel cost starting at Two Dollars and ten cents (\$2.10) per
20 gallon.

21 ~~G.~~ E. When skilled or specialized labor or equipment is
22 required, the cost incurred by the wrecker operator for such skilled
23 or specialized labor or equipment plus an additional twenty-five
24 percent (25%) gross profit markup or gross profit margin shall be

1 allowed to cover overhead costs for such labor and will be added to
2 the invoice or freight bill to be collected in addition to all other
3 applicable charges. This applies to labor and equipment not
4 regulated by the ~~Commission~~ Oklahoma Wrecker Services Division
5 established pursuant to Section 2 of this act.

6 ~~K.~~ F. Wrecker operators shall be allowed to obtain ownership
7 and insurer information, including accident reports and other public
8 records, from ~~the Oklahoma Tax Commission~~ Service Oklahoma or other
9 states' motor vehicle agencies or from law enforcement agencies for
10 the purpose of determining ownership and responsibility for wrecker
11 fees. In the event a state of origin is not known, the Department
12 of Public Safety and ~~the Oklahoma Tax Commission~~ Service Oklahoma
13 shall assist in providing such information. The wrecker operator is
14 authorized to collect lawful fees for such costs and services from
15 the owner, or lienholder that seeks possession of a vehicle under a
16 security interest, agent, or insurer accepting liability for paying
17 the claim for a vehicle or purchasing the vehicle as a total loss
18 vehicle from the owner of any towed or stored vehicle.

19 SECTION 10. AMENDATORY 47 O.S. 2021, Section 953.2, as
20 amended by Section 1, Chapter 316, O.S.L. 2023 (47 O.S. Supp. 2025,
21 Section 953.2), is amended to read as follows:

22 Section 953.2. A. The rates established by ~~order of the~~
23 ~~Corporation Commission~~ the Oklahoma Wrecker and Towing Services
24 Board established pursuant to Section 6 of this act, through the

1 authority of the Department of Labor, shall determine the maximum
2 fees and charges for the storage and after-hours release of
3 nonconsensual towed vehicles, including incorporated and
4 unincorporated areas, by a wrecker or towing service licensed by the
5 Department ~~of Public Safety~~ and repair facilities as defined in
6 Section 953 of Title 15 of the Oklahoma Statutes. No wrecker or
7 towing service or repair facilities shall charge any fee for
8 nonconsensual towed vehicles and storage which exceeds the maximum
9 rates established by the ~~Commission~~ Board. Such rates shall be in
10 addition to any other rates, fees or charges authorized, allowed or
11 required by law, including environmental remediation fees and
12 services.

13 B. 1. Storage or after-hours release of a towed vehicle, or
14 both, provided by a wrecker or towing service or by a repair
15 facility shall be recorded by the operator on a bill or invoice as
16 prescribed by rules of the Department.

17 2. Nothing herein shall limit the right of an operator or
18 repair facility who has provided or caused to be provided storage or
19 after-hours release of a towed vehicle, or both, to require
20 prepayment, in part or in full, or guarantee of payment of any
21 charges incurred for providing such services.

22 3. This section shall not be construed to require an operator
23 or repair facility to charge a fee for the storage or after-hours
24 release, or both, of any towed vehicle.

1 4. The operator or repair facility is authorized to collect all
2 lawful fees in acceptable forms of payment such as through check,
3 credit card, automated clearing house transfer, or debit card from
4 the owner, lienholder or agent of the towed vehicle or insurer
5 accepting liability for paying the claim for a vehicle or purchasing
6 the vehicle as a total loss vehicle from the registered owner for
7 the performance of any and all such services. An operator or repair
8 facility shall make the towed vehicle available for inspection by
9 the owner, lien holder, agent of the towed vehicle, or insurer
10 accepting liability for paying the claim for a vehicle and shall
11 release the vehicle from storage upon authorization from the owner,
12 agent or lienholder of the vehicle or in the case of a total loss,
13 the insurer accepting liability for paying the claim for the vehicle
14 or purchasing the vehicle where the vehicle is to be moved to an
15 insurance pool yard for sale.

16 ~~C. The rates in subsections D through F of this section shall~~
17 ~~be applicable until superseded by rates established by the~~
18 ~~Commission.~~

19 ~~D. Outdoor Storage Rates.~~

20 ~~1. Rates in this subsection shall apply to the outdoor storage~~
21 ~~of a towed vehicle. Rates may be applied from the time the towed~~
22 ~~vehicle is brought onto the outdoor storage facility premises.~~
23 ~~Rates shall apply to each calendar day of outdoor storage; provided,~~
24 ~~the maximum twenty-four hour fee, as provided for in this section,~~

1 ~~may be charged for any towed vehicle which is stored for a portion~~
2 ~~of a twenty-four hour period.~~

3 ~~2. Maximum outdoor storage rates shall be as follows:~~

4 ~~_____ Rate per Each~~
5 ~~_____ 24-hour Period or~~

6 ~~Type of Towed Vehicle _____ Portion Thereof~~

7 ~~Single vehicle: motorcycle, automobile,~~
8 ~~or light truck up to 20 feet in length _____ \$15.00~~

9 ~~Single vehicle or combination of vehicles~~
10 ~~over 20 feet in length but less than 30~~
11 ~~feet in length _____ \$20.00~~

12 ~~Single vehicle or combination of vehicles~~
13 ~~over 30 feet in length and up to 8 feet~~
14 ~~in width _____ \$25.00~~

15 ~~Single vehicle or combination of vehicles~~
16 ~~over 30 feet in length and over 8 feet~~
17 ~~in width _____ \$35.00~~

18 ~~E. Indoor Storage Rates.~~

19 ~~1. Rates in this subsection shall apply to the indoor storage~~
20 ~~of a towed vehicle. Rates may be applied from the time the towed~~
21 ~~vehicle is brought into the indoor storage facility premises. Rates~~
22 ~~shall apply to each calendar day of indoor storage; provided, the~~
23 ~~maximum twenty-four-hour fee, as provided for in this section, may~~

24

1 ~~be charged for any towed vehicle which is stored for a portion of a~~
2 ~~twenty-four hour period.~~

3 ~~2. Maximum indoor storage rates shall be as follows:~~

4 ~~_____ Rate per Each~~
5 ~~_____ 24-hour Period or~~

6 ~~Type of Towed Vehicle _____ Portion Thereof~~

7 ~~Single vehicle: motorcycle, automobile,~~
8 ~~or light truck up to 20 feet in length _____ \$25.00~~

9 ~~Single vehicle or combination of vehicles~~
10 ~~over 20 feet in length but less than 30~~
11 ~~feet in length _____ \$30.00~~

12 ~~Single vehicle or combination of vehicles~~
13 ~~over 30 feet in length and up to 8 feet~~
14 ~~in width _____ \$35.00~~

15 ~~Single vehicle or combination of vehicles~~
16 ~~over 30 feet in length and over 8 feet~~
17 ~~in width _____ \$45.00~~

18 ~~3. For purposes of this subsection, "indoor storage" means the~~
19 ~~vehicle is kept in an enclosed facility.~~

20 ~~F. After-Hours Release Rate.~~

21 ~~1. The rate in this subsection shall apply to the release of a~~
22 ~~towed vehicle to the owner, lienholder, or agent when such release~~
23 ~~occurs at a time other than normal business hours.~~

24 ~~2. As used in this subsection section:~~

1 ~~a. "after-hours release rate" shall mean~~

2 1. "After-hours release rate" means the rate charged for the
3 release of a towed vehicle between the hours of midnight and 8:00
4 a.m., or between the hours of 4:00 p.m. and midnight Monday through
5 Friday, or any time on Saturday, Sunday or a national holiday~~;~~; and

6 ~~b. "national holiday" shall mean New Year's Day, Martin~~
7 ~~Luther King Day, George Washington's Birthday, on the~~
8 ~~third Monday in February, Memorial Day, Independence~~
9 ~~Day, Labor Day, Veterans Day, Thanksgiving Day and~~
10 ~~Christmas Day,~~

11 2. "National holiday" means any holiday observed on which
12 federal or state offices are closed and shall further include the
13 Friday before such national holiday which falls on a Saturday and
14 the Monday following such national holiday which falls on a Sunday.

15 ~~3. The maximum after-hours release rate shall be Fifteen~~
16 ~~Dollars (\$15.00) per quarter hour for the release of any single~~
17 ~~vehicle or combination of vehicles.~~

18 ~~G.~~ D. An operator or repair facility shall be required to
19 provide reasonable documentation to substantiate all lawful fees
20 charged the owner, lienholder, agent or insurer accepting liability
21 for paying the claim for the towed vehicle or purchasing the towed
22 vehicle. Fees for which the operator or repair facility is being
23 reimbursed, or having paid to a third party, shall include copies of

1 the invoice or other appropriate documents to substantiate the
2 payment to the third party.

3 SECTION 11. AMENDATORY 47 O.S. 2021, Section 954, is
4 amended to read as follows:

5 Section 954. A. The Department of ~~Public Safety~~ Labor shall be
6 charged with the duty of enforcing the provisions of Section 951 et
7 seq. of this title for licensed wreckers and towing services
8 operating in this state.

9 B. Duly appointed peace officers of the political subdivisions
10 of this state shall have authority to detain and arrest any person
11 operating a wrecker or tow truck or offering towing services to the
12 public for a charge without a valid license issued pursuant to the
13 provisions of Section 951 et seq. of this title. Such officers,
14 upon reasonable belief that any wrecker or tow truck is being
15 operated without proper authority or without a valid license issued
16 pursuant to Section 951 et seq. of this title, shall be authorized
17 to require the operator thereof to stop and exhibit such
18 documentation as may be required to establish his or her authority
19 to tow or transport another vehicle or to prove possession of a
20 valid wrecker or tow service license issued in this state. Any
21 person convicted of operating a wrecker or tow truck or offering
22 towing services to the public for a charge in this state without a
23 license shall be guilty of a misdemeanor and punished with a fine of
24

1 One Thousand Dollars (\$1,000.00). Law enforcement shall impound the
2 tow truck being used in violation of this section.

3 SECTION 12. AMENDATORY 47 O.S. 2021, Section 954A, is
4 amended to read as follows:

5 Section 954A. A. In addition to any procedure provided by
6 local ordinance, whenever the owner or legal possessor of real
7 property or an authorized agent has reasonable cause to believe that
8 a vehicle has been abandoned thereon, said vehicle having been on
9 said property for a minimum of forty-eight (48) hours, or whenever a
10 vehicle is left upon said real property without express or implied
11 permission, such vehicle may be removed as provided in this section.

12 B. 1. The owner, legal possessor or authorized agent may
13 request any licensed Class AA wrecker service within the county
14 wherein the real property is located to remove the abandoned vehicle
15 from the premises by signing a Tow Request and Authorization Form
16 prescribed by the Department of ~~Public Safety~~ Labor and furnished to
17 licensed Class AA wrecker service operators as hereinafter provided.

18 2. If the owner, legal possessor or authorized agent of the
19 property owner is unable to obtain the services of a licensed Class
20 AA wrecker service to remove the abandoned vehicle in a reasonable
21 amount of time, the owner, legal possessor or authorized agent may
22 contact and request that a licensed Class AA wrecker service from an
23 adjacent county perform the service. A notation shall be made on
24 the Tow Request and Authorization Form that a licensed Class AA

1 wrecker service in the county in which the real property is located
2 was contacted but the licensed Class AA wrecker service was not able
3 to perform the removal in a reasonable amount of time.

4 C. A licensed Class AA wrecker service removing an abandoned
5 vehicle pursuant to this section shall be subject to the maximum
6 rates established by the ~~Corporation Commission~~ Oklahoma Wrecker and
7 Towing Services Board established pursuant to Section 6 of this act.

8 D. The ~~Department~~ Board shall design and promulgate a suitable
9 Tow Request and Authorization Form containing space for the
10 following information:

11 1. A description of the vehicle, including the type of vehicle,
12 year of manufacture, name of the manufacturer, vehicle color or
13 colors, identification number and license tag number;

14 2. The name, address and business telephone number of the
15 licensed Class AA wrecker service;

16 3. The name, address, telephone number and driver license
17 number or state-issued identification card number of the real
18 property owner, legal possessor or authorized agent;

19 4. Inventory of personal property within the vehicle to be
20 towed;

21 5. Time and date the form is completed; and

22 6. Signatures of the driver of the wrecker vehicle and of the
23 owner, legal possessor or authorized agent of the real property.
24

1 The ~~Department or the Commission~~ Board may require additional
2 information on the Tow Request and Authorization Form. The driver
3 license number or state-issued identification card number of the
4 real property owner, legal possessor or authorized agent shall not
5 be disclosed by the Department ~~or the Commission~~ to any entity
6 inquiring about services performed without a court order or without
7 written consent from the property owner, legal possessor or
8 authorized agent.

9 E. The real property owner, legal possessor or authorized agent
10 and the wrecker vehicle driver shall jointly, and each in the
11 presence of the other, inventory personal property found within or
12 upon the vehicle and each shall accordingly sign a statement on the
13 form reflecting this requirement has been fulfilled. In the event
14 an inventory cannot be completed, the reasons therefor shall be
15 clearly stated on the form.

16 F. A copy of the completed Tow Request and Authorization Form
17 shall be retained by the signatories and the licensed Class AA
18 wrecker service shall maintain the wrecker vehicle driver's copy for
19 not less than one (1) year, or longer if required by the Department
20 ~~or the Commission~~. The licensed Class AA wrecker service shall
21 forthwith send the completed original Tow Request and Authorization
22 Form to the Department and the remaining copy of the completed form
23 to the local police department of the municipality in which the real
24 property is located, or the sheriff's office of the county from

1 which the vehicle was towed, if the real property is located outside
2 of an incorporated municipality. A facsimile copy of the Tow
3 Request and Authorization Form shall be considered the original form
4 if a printed or digital confirmation of the facsimile transmission
5 is available.

6 G. Within three (3) business days of the time indicated on the
7 form, the licensed Class AA wrecker service shall request ~~the~~
8 ~~Oklahoma Tax Commission~~ Service Oklahoma or ~~either~~ an appropriate
9 ~~motor license agent~~ licensed operator to furnish the name and
10 address of the current owner of and any lienholder upon the vehicle.
11 ~~The Tax Commission~~ Service Oklahoma or an appropriate ~~motor license~~
12 ~~agent~~ licensed operator shall respond in person or by certified mail
13 to the licensed Class AA wrecker service within five (5) business
14 days from the receipt of the request for information. ~~The~~
15 ~~Department and the Oklahoma Tax Commission~~ Service Oklahoma shall
16 render assistance to ascertain ownership, if needed. The licensed
17 Class AA wrecker service shall, within seven (7) days from receipt
18 of the requested information from ~~the Oklahoma Tax Commission~~
19 Service Oklahoma or ~~either motor license agent~~ a licensed operator,
20 send a notice of the location of the vehicle by certified mail, or
21 if by Department notification, the Department may notify by first-
22 class mail, postage prepaid, at the addresses furnished, to the
23 owner and any lienholder of the vehicle. The owner or lienholder
24 may regain possession of the vehicle in accordance with rules of the

1 Department upon payment of the licensed Class AA wrecker services,
2 costs of certified mailing and the reasonable cost of towing and
3 storage of the vehicle. If the licensed Class AA wrecker service
4 has not complied with the notification procedures required by this
5 subsection, the owner or lienholder shall not be required to pay for
6 storage of the vehicle.

7 H. No licensed Class AA wrecker service or operator of a
8 licensed Class AA wrecker service shall tow or cause to be towed a
9 vehicle pursuant to this section until the form furnished by the
10 Department has been appropriately completed by the parties as
11 required by rules of the Department.

12 SECTION 13. AMENDATORY 47 O.S. 2021, Section 955, as
13 amended by Section 12, Chapter 228, O.S.L. 2022 (47 O.S. Supp. 2025,
14 Section 955), is amended to read as follows:

15 Section 955. A. Any officer of the Department of ~~Public Safety~~
16 Labor or any other political subdivision of this state is hereby
17 authorized to cause to be towed any vehicle found upon public roads,
18 highways, streets, turnpikes, private parking lots accessible to the
19 public, other public places or upon any private road, street, alley
20 or lane which provides access to one or more single-family or
21 multifamily dwellings when:

22 1. A report has been made that the vehicle has been stolen or
23 taken without the consent of its owner;

24

1 2. The officer has reason to believe the vehicle has been
2 abandoned as defined in Sections 901 and 902 of this title;

3 3. The person driving or in control of the vehicle is arrested
4 for an alleged offense for which the officer is required by law to
5 take the person arrested or summoned before a proper magistrate
6 without unnecessary delay;

7 4. At the scene of an accident, if the owner or driver is not
8 in a position to take charge of the vehicle and direct or request
9 its proper removal;

10 5. The officer has probable cause that the person operating the
11 vehicle has not been granted driving privileges or that the driving
12 privileges of the person are currently suspended, revoked, canceled,
13 denied, or disqualified;

14 6. The officer has probable cause that the vehicle has been
15 used in the commission of a felony offense and the officer has
16 obtained a search warrant authorizing the search and seizure of the
17 vehicle;

18 7. The officer has probable cause that the vehicle is not
19 insured as required by the Compulsory Insurance Law of this state;

20 ~~or~~

21 8. The vehicle is involved in a fatal motor vehicle collision
22 and is needed for evidentiary purposes; or

23 9. A vehicle is left unattended upon any street, sidewalk,
24 alley or thoroughfare and constitutes a hazard or obstruction to the

1 normal movement of public transit along a rail fixed guideway. An
2 unattended vehicle shall be deemed to constitute an obstruction if
3 any portion of the vehicle remains in that lane utilized for the
4 rail fixed guideway as designated by traffic lane markings or if any
5 portion of the vehicle is outside of the designated parking location
6 and protrudes into the lane of traffic utilized for the rail fixed
7 guideway. For purposes of this paragraph, the head of a political
8 subdivision's transportation division may authorize employees to
9 cause to be towed any vehicle which constitutes a hazard or
10 obstruction to the normal movement of public transit along a rail
11 fixed guideway.

12 No vehicle shall be released after impoundment unless the owner
13 provides to the storing facility proof of valid insurance or an
14 affidavit of nonuse on the roadway, or in the event of a release
15 request from an insurer or the representative of the insurer who has
16 accepted liability for the vehicle, no such proof of insurance or
17 affidavit of nonuse on the roadway shall be required.

18 B. A licensed wrecker operator is not liable for damage to a
19 vehicle, vessel, or cargo that obstructs the normal movement of
20 traffic or creates a hazard to traffic and is removed in compliance
21 with the request of a law enforcement officer, unless there is
22 failure to exercise reasonable care in the performance of the act or
23 for conduct that is willful or malicious.

24

1 C. Each officer of the Department shall use the services of the
2 licensed wrecker operator whose location is nearest to the vehicle
3 to be towed in all instances in subsection A of this section. The
4 requests for services may be alternated or rotated among all
5 licensed wrecker operators who are located within a reasonable
6 radius of each other. In like manner, the officer shall advise any
7 person requesting information as to the availability of a wrecker or
8 towing service, the name of the nearest licensed wrecker operator,
9 giving equal consideration to all licensed wrecker operators located
10 within a reasonable radius of each other. In cities with a
11 population of less than fifty thousand (50,000) ~~population~~ according
12 to the latest Federal Decennial Census, all licensed wrecker
13 operators located near or in the city limits of such cities shall be
14 considered as being equal distance and shall be called on an equal
15 basis as nearly as possible. In counties bordering other states, if
16 the officer deems safety and time considerations warrant, the
17 officer may call a wrecker or towing service that is not on the
18 rotation log.

19 D. Any officer of the Department who has been requested by a
20 person in need of wrecker or towing service to call a specific
21 wrecker or towing service for such person, and who calls a different
22 wrecker or towing service other than the one requested, without the
23 consent of the person, except where hazardous conditions exist,
24 shall be subject to progressive discipline issued by the Department

1 except in instances where a vehicle is removed from the roadway
2 under the authority of paragraphs 3, 4 and 6 of subsection A of this
3 section.

4 E. Operators conducting a tow under this section shall release
5 all personal property within the vehicle to an insurer or
6 representative of the insurer who has accepted liability for the
7 vehicle, or to the registered owner or the owner's personal
8 representative as designated by the registered owner on a form
9 approved by the Department of Labor. The registered owner or
10 representative of the registered owner shall provide proof of
11 identity in accordance with the Department's rules related to
12 establishing identity. Upon the release of personal property to an
13 insurer or representative of the insurer, wrecker operators shall be
14 exempt from all liability and shall be held harmless for any losses
15 or claims of loss. Personal property shall include everything in a
16 vehicle except the vehicle, the attached or installed equipment,
17 vehicle keys or devices to start and unlock the vehicle, and the
18 spare tire and tools to change the tire. Interlock devices may be
19 removed pursuant to Section 11-902a of this title. If release of
20 personal property occurs during normal business hours as prescribed
21 by the ~~Corporation Commission~~ Department, it shall be at no cost to
22 the registered owner or the owner prior to the repossession. After-
23 hour fees may be assessed as prescribed by this Chapter or by the
24

1 ~~Corporation-Commission~~ Department, when the release of property is
2 made after the prescribed normal business hours.

3 F. The operator of a wrecker or towing service may request a
4 person offering proof of ownership of personal property and any
5 interlock device to execute a form provided by the operator
6 exempting the operator from liability for such release.

7 SECTION 14. AMENDATORY 47 O.S. 2021, Section 956, is
8 amended to read as follows:

9 Section 956. A. No operator, employee, or contractor of a
10 wrecker or towing service or of a person or business that derives
11 any business or income from a wrecker or towing service shall offer,
12 and no officer or employee of the ~~Corporation-Commission~~ Department
13 of Labor, Department of Public Safety, or any political subdivision
14 of the state shall accept, directly or indirectly, any compensation,
15 gift, loan, favor or service given for the purpose of influencing
16 the officer or employee in the discharge of official duties of the
17 person.

18 B. Except as provided in subsection C of this section, no
19 employee of the Department of Labor, officer of the ~~Commission~~,
20 Department of Public Safety, or any law enforcement officer of any
21 political subdivision of the state shall have any interest,
22 financial or otherwise, in a wrecker or towing service, or with a
23 person or in a business that derives business or income from a
24 wrecker or towing service, nor shall a wrecker or towing service or

1 a person or business that derives any business or income from a
2 wrecker or towing service employ such officer or employee.

3 C. An employee of the Department of Labor, officer of the
4 ~~Commission~~, Department of Public Safety, or a law enforcement
5 officer of any political subdivision may have an interest, financial
6 or otherwise, in or may be employed by a wrecker or towing service
7 when the sole purpose and only business of the wrecker or towing
8 service is to perform repossessions of vehicles ~~which~~ that are
9 subject to lien and are being repossessed by the lien holder of
10 record.

11 SECTION 15. AMENDATORY 47 O.S. 2021, Section 966, is
12 amended to read as follows:

13 Section 966. A. This act shall be known and may be cited as
14 the "Nonconsensual Towing Act of 2011".

15 B. The provisions of this act shall apply to every wrecker
16 operating within ~~the State of Oklahoma~~ this state removing and
17 storing vehicles from Oklahoma roads and highways or private
18 property as a result of a nonconsensual tow.

19 C. The ~~Corporation Commission, by Commission order~~ Department
20 of Labor, through the Oklahoma Wrecker and Towing Services Board
21 established pursuant to Section 6 of this act, shall have the power
22 and authority necessary:

1 1. To establish wrecker rates for the transportation and
2 storage of motor vehicles removed due to a nonconsensual tow from
3 Oklahoma roads and highways or private property;

4 2. To supervise and enforce such rates; and

5 3. To mediate and adjudicate complaints that may arise from
6 charges assessed as a result of such vehicle removal.

7 D. Rates as specified ~~in Sections 953.1 and 953.2 of Title 47~~
8 ~~of the Oklahoma Statutes~~ by the Corporation Commission shall remain
9 in effect for twelve (12) months following the effective date of
10 this act and until rates are established ~~by order of the Commission~~
11 the Board.

12 E. Rates established by the ~~Commission~~ Board shall be fair and
13 reasonable.

14 F. The ~~Commission~~ Board may assess fines or other penalties to
15 any wrecker or towing service for failure to comply with prescribed
16 rates as established by the ~~Commission~~ Board, failure to pay a
17 levied assessment, or failure to comply with any applicable ~~order of~~
18 ~~the Commission~~ rule of the Board. Repeat violations by a wrecker or
19 towing service are cause for revocation of its license issued by the
20 Department of ~~Public Safety~~ Labor.

21 G. The Department of Public Safety shall cooperate with the
22 ~~Commission~~ Department of Labor to implement this act and may enter
23 into agreements to facilitate this act.

1 SECTION 16. AMENDATORY 47 O.S. 2021, Section 967, is
2 amended to read as follows:

3 Section 967. A. ~~The Corporation Commission~~ Department of Labor
4 is hereby authorized to assess a fee upon each wrecker or towing
5 service licensed by the Department ~~of Public Safety~~ and placed upon
6 an official rotation log, as specified in Section 952 of ~~Title 47 of~~
7 ~~the Oklahoma Statutes~~ this title, to perform nonconsensual tows.

8 B. Each wrecker or towing service shall pay the assessment,
9 levied pursuant to this section, on an annual basis.

10 C. The assessment shall be predicated upon the number of
11 wrecker or towing vehicles utilized by the wrecker or towing service
12 to conduct its Department-licensed operations.

13 D. Commencing with assessments made after June 30, 2017,
14 failing to pay the wrecker or towing services assessment by the due
15 date established by the ~~Corporation Commission~~ Department shall
16 result in an additional penalty of twenty-five percent (25%) per
17 vehicle. ~~The Transportation Division Director, or designee,~~
18 Department may waive the penalty for good cause shown. Failure to
19 pay the assessment and penalty within thirty (30) days of the notice
20 of penalty issued by the ~~Corporation Commission~~ Department shall
21 result in revocation of the wrecker or towing license issued by the
22 Department.

23 E. ~~Beginning fiscal year 2013, the~~ The Legislature shall
24 establish budgetary limits for the ~~Commission~~ Department to fulfill

1 the duties of the Nonconsensual Towing Act of 2011. The total
2 assessments levied pursuant to this section shall not exceed the
3 amount of the budgetary limits and indirect costs for related
4 support functions established by the Legislature for any fiscal
5 year. Annual budgetary limits shall stay in effect unless
6 superseded by action of the Legislature.

7 SECTION 17. AMENDATORY 47 O.S. 2021, Section 968, is
8 amended to read as follows:

9 Section 968. The ~~Corporation Commission~~ is Department of Labor
10 shall be authorized to appoint unclassified employees to perform the
11 duties and responsibilities associated with the Nonconsensual Towing
12 Act of 2011.

13 SECTION 18. This act shall become effective November 1, 2026.

14 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
15 April 16, 2026 - DO PASS AS AMENDED BY CS
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